



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 17 judgments on Tuesday 24 July 2018 and 78 judgments and / or decisions on Thursday 26 July 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 24 July 2018

Negrea and Others v. Romania (no. 53183/07)

The applicants, Ms Victoria-Paula Negrea, Ms Didica Moldovan, Ms Adriana-Paula Lakatos née Boros, Ms Rita-Cosmina Rostaş née Ciurar, Ms Julieta-Lenuţa Lăcătuş and Ms Dorina-Ramona Rostaş are Romanian nationals belonging to the Roma ethnic group who were born in 1971, 1974, 1980, 1985, 1986 and 1981 respectively and live in Frata.

The case concerns, *inter alia*, allegations of indirect discrimination on grounds of belonging to the Roma ethnic group, *vis-à-vis* the right to family allowances.

The legal provisions in force at the material time (2001 to 2003) provided for the award of various social rights, such as a childbirth payment for mothers and child allowance. At the material time the applicants had been cohabiting with their partners. Each of them gave birth to a child out of wedlock, and all the children were recognised by their respective fathers. The applicants submit that their local town clerk refused to register their allowance applications on the grounds that they had not contracted civil marriages with their children's fathers.

In July 2003 the applicants lodged a criminal complaint against the Frata town clerk and mayor with the Turda court of first instance on charges of abuse of authority. They stated their intention to join the proceedings as civil parties in order to claim compensation for the damage caused by the town clerk's and mayor's refusal to register their applications. At the close of the proceedings, the public prosecutor's office dealing with the case decided to discontinue it. The applicants applied to the National Anti-discrimination Board (CNCD) within the same month. The latter conducted an investigation, concluding that the application lodged by five of the applicants had been rejected on the grounds that they did not meet the conditions laid down by law, and that the sixth applicant's application had been rejected because the law did not apply to her particular situation.

In the absence of a reply to their challenge to the CNCD's decision, the applicants filed an administrative appeal against the CNCD with the Cluj-Napoca Court of Appeal. In July 2005 the Court of Appeal dismissed the action on the grounds that the CNCD had conducted a full investigation, that the refusal to grant the allowance had been based on non-fulfilment of the legal conditions and that the refusal had been scrutinised by the administrative courts. The High Court of Cassation and Justice upheld the judgment delivered by the Court of Appeal.

Relying on Article 6 § 1 (right to a fair trial within a reasonable time) of the European Convention on Human Rights, the applicants complain of the length of proceedings. Relying on Article 14 (prohibition of discrimination) of the Convention read in conjunction with Article 8 (right to private and family life) and/or Article 1 of Protocol No. 1 (protection of property), they complain of discriminatory treatment in the exercise of their right to social welfare allowances.

Vlase v. Romania (no. 80784/13)

The applicants, Elena Vlase and Ioana Ortensia Vlase, are Romanian nationals who were born in 1952 and 1974 respectively and live in Braşov. They are the wife and daughter, respectively, of N.V., who died in Braşov Military Hospital on 13 January 2012.

On 7 December 2011 N.V. was admitted to a military hospital, where he underwent a check-up. He was diagnosed with a gastroduodenal ulcer caused by a bacterial infection. He was referred to a doctor who recommended surgery. Following post-operative complications, he underwent two further operations, carried out by the same medical team, and later a feeding tube was installed. On 6 January 2012 the presence of new bacteria was discovered. On 9 January 2012 N.V.'s state of health deteriorated owing to haemorrhaging. He died on 13 January 2012.

The applicants lodged a complaint of manslaughter with the Braşov Court of First Instance. An investigation was immediately launched, and several expert assessments were conducted. In August 2014 the applicants complained to the court about the delays in proceedings. On 22 September 2014 the prosecutor's office with Braşov County Court brought criminal proceedings for manslaughter. On 3 June 2015 the prosecution decided to discontinue the case as the prosecutors had discovered no criminal negligence attributable to the doctors involved. The applicants, unsuccessfully, challenged that decision, and then lodged a legal challenge in court, which was referred to the prosecutor's office with the Braşov Court of Appeal. That court acceded to the challenge, and decided that the prosecutor's office with the Cluj Military Court held jurisdiction for the case. On 18 May 2017 the Cluj Military Court ordered the discontinuance of the complaint. The applicants' challenge was dismissed.

By order of 22 May 2017, the Cluj Military Court referred the case to the Braşov Court of First Instance. The proceedings are still pending.

Relying, in particular, on Article 2 (right to life), the applicants complain of the lack of an effective investigation following their criminal complaint concerning N.V.'s death.

Vyshnyakov v. Ukraine (application no. 25612/12)

The applicant, Sergiy Vyshnyakov, is an Ukrainian national who was born in 1973 and lives in Mykolayiv (Ukraine). The case concerns access rights to his daughter after his divorce from the mother in 2009.

In June 2009, following the divorce, the domestic courts granted Mr Vyshnyakov the right to see his two-year old daughter three times per week. He has since attempted to enforce this judgment on a number of occasions, without success. On the first occasion, in the autumn of 2009, the bailiffs did not make any enforcement arrangements because the procedure was not specified by law. On the second occasion, in 2012, the bailiff considered that the June 2009 judgment had been fully enforced after he had read out the operative part to the mother. This decision was then upheld by the courts.

Mr Vyshnyakov brought a number of other proceedings to complain about the mother's refusal to comply with the judgment, as well as a claim for damages, all to no avail. He repeatedly complained to the police.

In 2014 he also asked the courts to change his daughter's residence to Mykolayiv, where he lives, because the mother and daughter had in the meantime moved 600 kilometres away to Selydove, in the Donetsk Region. However, the courts dismissed his claim, rejecting his arguments that he was in a better financial situation than the mother, who was unemployed, and that Selydove was in a conflict zone and dangerous for the child.

Mr Vyshnyakov complains about the domestic courts' failure to enforce the court judgment granting him access rights to his daughter. This complaint will be examined under Article 8 (right to family

life) of the European Convention on Human Rights. Further relying on Article 8 and 14 (prohibition of discrimination) of the Convention, he alleges that the courts failed to assess all the relevant circumstances when refusing to change his daughter's residence and discriminated against him because they tended to give preference to mothers when deciding on a child's residence.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

A.N. v. Hungary (no. 54333/13)

E.W. v. Hungary (no. 71323/13)

G.L. v. Hungary (no. 44360/13)

L.F. v. Hungary (no. 59373/13)

P.B. v. Hungary (no. 44362/13)

P.K. v. Hungary (no. 21834/14)

Szabó v. Hungary (no. 54332/13)

Z.G. v. Hungary (no. 65858/13)

Gherguț v. Romania (no. 30343/10)

Professional Public Notary Organisation 'Etica' v. Romania (no. 43190/10)

Farrakhov v. Russia (no. 33128/08)

Filyutkin v. Russia (no. 39234/08)

Gazizov v. Russia (no. 30906/06)

Shakirzyanov v. Russia (no. 50650/16)

Thursday 26 July 2018

[Gohe and Others v. France \(nos. 65883/14, 21434/15, 48044/15, and 51477/15\)](#)

The applicants, Mr David Gohe, Mr Freddy Cornelissen, Mr François Parent and Mr Bruno Guedj, are French nationals who were born in 1967, 1966, 1952 and 1972 and live in Asnières-sur-Seine, Montfort l'Amaury, Paris and Issy-les-Moulineaux respectively.

The case concerns searches of the houses of third parties and the subsequent seizures, which served to verify a separate tax inspection *vis-à-vis* each of the applicants, leading to either tax assessment proceedings or charges of tax fraud.

In April 2006 the liberties and detention judge of the Nanterre Regional Court, adjudicating on a case submitted by the tax authorities, authorised them to conduct house searches in various places, including at the home address of B., a tax concessions consultant. During the operations, documents concerning each of the applicants were seized. Mr Gohe, Mr Cornelissen, Mr Parent and Mr Guedj underwent tax inspections, which led to additional tax assessments, except in the case of Mr Cornelissen, who was convicted of tax fraud.

All the applicants unsuccessfully lodged appeals with both the administrative courts (all the applicants) and the criminal courts (Mr Cornelissen).

Relying on Article 6 § 1 (right to a fair trial) and Article 8 (right to respect for private and family life), the applicants complain of the dismissal of their submissions at all stages of the proceedings and their inability to challenge the lawfulness of the home searches and the seizures carried out, in particular at B.'s home address. Furthermore, Mr Gohe complains, under Article 6 § 1 of the Convention, of the dismissal of his request for legal aid on the grounds that it had deprived him of

the opportunity to present his case to the *Conseil d'État*. Finally, Mr Gohe, Mr Cornelissen and Mr Guedj complain of a breach of Article 13 of the Convention.

[Guelfucci v. France \(no. 31038/12\)](#)

The applicant, Christine Guelfucci, is a French national who was born in 1960 and lives in Vallauris. Having been forcibly admitted to a psychiatric hospital in 1994 at her father's request, she disputes the lawfulness of her detention.

In July 1994 the applicant's father alerted the police because of his concern about his daughter's mental state, as she had confided in third persons that she was intending to take her own life and the lives of her children. Ms Guelfucci was detained in the Antibes psychiatric hospital that same evening, on the basis of two medical certificates. The next day, her father submitted a hospitalisation request pursuant to Article L. 333 of the Public Health Code in force at the time. Ms Guelfucci remained in hospital until the beginning of August 2011.

The applicant brought several sets of proceedings before the judicial and administrative courts. In February 1996 she lodged a complaint for intrusion upon the home and wrongful detention, together with an application to join the proceedings as a civil party, against the Director of the psychiatric hospital, with Grasse Criminal Court, which acquitted the latter in October 2006. In May 2004 she lodged four applications to set aside the decisions taken by the Director of the psychiatric hospital with the Nice Administrative Court, which dismissed them, as upheld by the Marseille Administrative Court of Appeal. In November 2011 the *Conseil d'État* decided not to admit the appeal on points of law lodged by the applicant. In January 2006 Ms Guelfucci lodged with the Paris Regional Court an action against the State for compensation for the excessive length of proceedings following her criminal complaint. The Paris Court of Appeal upheld the compensation award in June 2008.

Relying on Article 5 § 1 (right to liberty and security), Ms Guelfucci complains of the unlawfulness of her deprivation of liberty. Relying on Article 6 § 1 (right to a fair trial within a reasonable time) and Article 13 (right to an effective remedy), she submits that the length of the administrative proceedings was excessive, that she did not have an effective remedy and that the *Conseil d'État* had provided no reasons for its decision not to admit her appeal on points of law. Lastly, she alleged that she had sustained various other breaches of her rights as protected by Article 5 § 2 and 4 (right to be informed promptly of charges / right to a speedy decision on the lawfulness of detention) and Article 8 (right to respect for private and family life) of the Convention.

[Bartaia v. Georgia \(no. 10978/06\)](#)

The applicant, Alexander Bartaia, is a Georgian national who was born in 1938 and lives in Tbilisi. The case concerns proceedings he brought against his employer, a printing company, following his dismissal.

A hearing on Mr Bartaia's case was held on 28 January 2004. His lawyer could not attend because he was involved in another hearing at the same time. The lawyer had written to the court shortly beforehand to inform it of his absence and requesting an adjournment. He received no reply and Mr Bartaia therefore attended the hearing on his own. He also requested an adjournment, refusing to participate in the hearing without his lawyer. The court concluded that his refusal to participate amounted to his absence and issued a default judgment rejecting his case.

Mr Bartaia's lawyer then filed an application to have that judgment set aside, without success. In particular, in May and September 2005, the appellate and cassation courts concluded that there was no justification for refusing to take part in a hearing under the relevant domestic law and that the participation of a lawyer in another hearing was not a valid reason for setting aside a decision *in absentia*. Furthermore, they found that Mr Bartaia had been warned by the first-instance judge of the consequences of his refusing to participate in the hearing.

Relying on Article 6 (right to a fair hearing) of the European Convention on Human Rights, he alleges that the proceedings in his case were unfair. He alleges in particular that the default judgment was issued against him without him being able to participate in the proceedings on an equal footing with the opposing party, who was represented by a lawyer, and that he was not given the possibility to then obtain a fresh examination of his case.

[Dridi v. Germany \(no. 35778/11\)](#)

The applicant, Abdelhamid Dridi, is a German national who was born in 1982 and lives in Cadiz (Spain). The case concerns criminal proceedings in which a summons was served by way of public notification and the possibility for the defence to prepare properly for the hearing.

In March 2009 Mr Dridi was convicted of assault and sentenced to a fine of 1,000 euros by the Hamburg District Court. The court had, at the applicant's request, authorised a law student, Mr Arif, to act as defence counsel. Both sides appealed. Mr Dridi moved later to Spain, communicating his new address to the court.

On 24 April 2009 the Hamburg Regional Court withdrew the Mr Arif's authorisation to act as defence counsel for Mr Dridi and rejected his application to be released from the obligation to appear in person. This decision was served on Mr Dridi in Spain. On the same day, the Regional Court fixed the date for the oral appeal hearing, but decided to serve the summons on Mr Dridi via public notification because he had moved abroad.

One day before the oral appeal hearings, on 12 May 2009, Mr Arif learned by telephone that the Court of Appeal had quashed the Regional Court's withdrawal of his authorisation to act as counsel for Mr Dridi and that the appeal hearing was scheduled for the next morning. He applied by fax for the hearing to be adjourned as he was due to be away that day.

On 13 May 2009 the Regional Court decided to refuse the application by Mr Dridi's lawyer for the appeal hearing to be adjourned. Simultaneously, it dismissed Mr Dridi's appeal without an assessment on the merits because he had not appeared at the appeal hearing or been represented by a lawyer. Mr Dridi's request for restoration of the *status quo ante* was dismissed by the Regional Court in March 2010, whose decision was upheld by the Court of Appeal.

The applicant's appeal on points of law against the Regional Court's judgment of 13 May 2009 was rejected by the Court of Appeal in July 2010. A constitutional complaint was lodged by Mr Dridi, but was unsuccessful.

Relying on Article 6 §§ 1 and 3 (b) and (c) (right to adequate time and facilities for preparation of defence and right to defend oneself in person or through legal assistance), Mr Dridi complains that the hearing before the Regional Court was not adjourned and that his lawyer was thus not given an adequate opportunity to access the court's case file for preparation or attend the appeal hearing.

[Fröhlich v. Germany \(no. 16112/15\)](#)

The applicant, Arnulf Fröhlich, is a German national who was born in 1966 and lives in Köthel (Germany).

The case concerns Mr Fröhlich's belief that he is the biological father of a baby girl born in 2006 and the related domestic court proceedings.

In 2004 Mr Fröhlich started a relationship with a married woman, who continued to live with her husband and their six children. The relationship ended shortly after she gave birth to a baby girl in October 2006.

All Mr Fröhlich's attempts to have contact with the girl were subsequently refused. The married couple denied that he was the biological father and refused to give their consent to a paternity test.

Mr Fröhlich also initiated various proceedings before the courts to establish his legal paternity, to have a paternity test and to obtain contact and information rights, all without success. In particular, basing its decision on a written statement by the child's guardian appointed to act on her behalf and the oral statements of Mr Fröhlich, the child's legal parents and the child herself, the Court of Appeal ultimately decided in 2013 to grant neither contact nor information rights. It held that both would require addressing the preliminary issue of whether Mr Fröhlich was the child's biological father which would not be in her best interests. In coming to this decision, the Court of Appeal analysed the family's situation, which it felt would be at risk if the legal parents were forced into clarifying the paternity issues. It also added that contact with the applicant would in any event not be in the child's best interests. In 2014 the Federal Constitutional Court declined to consider his constitutional complaint.

Relying on Article 8 (right to private and family right) of the European Convention, Mr Fröhlich complains about the domestic courts' decisions refusing to grant him contact rights and to order the legal parents to provide him with information about the child.

[N.K. v. Germany \(no. 16112/15\)](#)

The applicant, N.K., is a German national who was born in 1966 and is currently in detention.

The case concerns criminal proceedings brought against him for domestic violence.

N.K. was arrested in September 2009 on suspicion of violence against his wife and detained on remand. An investigating judge, without appointing counsel for the applicant, had questioned his wife, who had elaborated on a particularly violent episode during the last weekend of July 2009, ending on 2 August with her managing to escape from the marital home and take refuge with neighbours. She stated that her husband had repeatedly assaulted her throughout their marriage, but that the assaults had escalated during that weekend, and had included repeated beatings, with a rope, a wooden pole and shoes, and forcing her to carry out sexual acts on herself.

During the trial against the applicant, his wife refused to give testimony. The Regional Court nonetheless relied on the testimony she had made to the investigating judge at the pre-trial stage to convict the applicant in June 2010 of, among other things, dangerous assault, sentencing him to six and a half years' imprisonment. It also relied on statements made by a number of witnesses to the events on 2 August 2009 and to the applicant's wife's injuries and frantic state, including: the counsellor at the women's shelter where the applicant's wife had been admitted; the son of the applicant's wife, who had been at home in his room during the weekend in question and had heard screaming; a number of neighbours who had helped the applicant's wife; and, by police officers who had been called to the scene. The applicant lodged an appeal on points of law and a constitutional complaint, without success.

Relying on Article 6 §§ 1 and 3 (d) (right to obtain attendance and examination of witnesses), N.K. complains that the proceedings against him were unfair because neither he nor his counsel were given the opportunity at any stage to examine his wife, who was the only direct witness to the offences of which he was found guilty.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Imširović and Others v. Bosnia and Herzegovina (nos. 78628/17 and 79133/17)

M.F. v. France (no. 13437/13)

Diasamidze v. Georgia (no. 67857/11)

A.G. v. Hungary (no. 56803/13)

Angyal and Others v. Hungary (nos. 44367/13, 44369/13, 44371/13, 44662/13, 44663/13, 53417/13, 63919/13, 65572/13, 69983/13, 70515/13, 75660/13, 615/14, and 3836/14)

Ambrosini and Others v. Italy (nos. 30213/14, 30239/14, 30258/14, 39381/14, 39384/14, 49395/14, 49398/14, and 49399/14)

Catapano and Others v. Italy (no. 32878/14 and 44 other applications)

Cesarini and Others v. Italy (nos. 21876/14 and 22066/14)

Cozzolino and Others v. Italy (nos. 50467/14, 50591/14, 52277/14, 52302/14, 8611/15, and 8688/15)

Crispino and Others v. Italy (nos. 76630/11, 52706/12, 52709/12, 7248/13, 7343/13, 7345/13, 7347/13, 7358/13, 23787/13, 23793/13, and 23801/13)

Matteo and Others v. Italy (nos. 38374/11, 52802/12, 59248/12, 59267/12, 61981/12, 61999/12, 62004/12, 71249/12, 81759/12, 15440/13, 28445/13, 28462/13, 30476/13, 30477/13, and 30479/13)

Napolitano and Others v. Italy (nos. 13616/13, 13624/13, 71720/13, 21968/14, and 20977/16)

Orlacchio and Others v. Italy (nos. 48552/12, 70063/12, 70072/12, 13445/13, 13447/13, 13457/13, 16125/13, and 16143/13)

Tedesco and Others v. Italy (no. 43042/04 and 34 other applications)

Truden and Others v. Italy (nos. 22185/12, 23190/12, 37491/12, 38609/12, and 39455/12)

Daktaras v. Lithuania (no. 78123/13)

Glinskis v. Lithuania (no. 51707/14)

Gudelis v. Lithuania (no. 24676/14)

Kuprijaškin v. Lithuania (no. 75275/16)

Ragulskis v. Lithuania (no. 55109/15)

Romeiko and Others v. Lithuania (nos. 67465/13, 2784/14, 13181/14, 20538/14, 1147/17, and 377/18)

Toporkov v. Lithuania (no. 2775/14)

Touré v. the Netherlands (no. 14778/18)

Figueiredo e Silva v. Portugal (no. 10176/17)

Morais Esteves de Barros v. Portugal (no. 48623/16)

Buhai and Others v. Romania (nos. 33653/16, 38659/16, 43318/16, 44450/16, 45058/16, 45755/16, 49453/16, 49511/16, 50724/16, 51373/16, 51484/16, 51598/16, 52003/16, 52477/16, 52971/16, 55685/16, 58879/16, 59881/16, 59905/16, 59919/16, 59945/16, and 66977/16)

Burcea and Others v. Romania (nos. 15557/15, 29956/15, 46426/15, 48073/15, 52024/15, 15681/16, 16171/16, 16249/16, 16475/16, 44312/16, and 49001/16)

Carole and Dobrea v. Romania (nos. 55069/15 and 15641/16)

Chiriac v. Romania (no. 23930/15)

Costea and Others v. Romania (nos. 8893/16, 10842/16, 11672/16, 23483/16, and 76364/16)

Crivăţ and Others v. Romania (nos. 31195/12, 61874/12, and 35967/13)

Drăguşanu and Christoulacis v. Romania (no. 4125/12)

Dumitrescu and Others v. Romania (nos. 66551/14, 27195/15, 30264/15, 34061/15, 35104/15, 37381/15, 41508/15, 42998/15, 45945/15, 50403/15, 58498/15, and 62851/15)

Iacobescu and Prisăcaru v. Romania (nos. 20514/16 and 20751/16)

Iftenie v. Romania (no. 22442/16)

Ilie v. Romania (no. 78943/12)

Ionescu v. Romania (no. 38134/10)

Ivan and Others v. Romania (nos. 35486/15, 56374/15, 58147/15, 61179/15, 61700/15, 62712/15, 1847/16, 3794/16, 3800/16, 5114/16, 6542/16, 7259/16, 16823/16, and 16905/16)

Ivaşcu v. Romania (no. 41719/12)

Lăzărescu v. Romania (no. 3014/12)

Mihai and Others v. Romania (nos. 12701/15, 39337/15, 62813/15, 5090/16, 12950/16, 24101/16, 24621/16, 25959/16, 33632/16, and 49483/16)

Neagovici and Others v. Romania (nos. 36177/15, 44666/15, 59184/15, 62534/15, 1868/16, 4404/16, 8096/16, 14182/16, 16784/16, 20637/16, 26135/16, 28515/16, 29878/16, 30607/16, 31175/16, and 33683/16)
Nuna v. Romania (no. 37352/12)
Onișa and Others v. Romania (no. 8280/15 and 25 other applications)
Pakot and Peleși v. Romania (nos. 62853/15 and 20995/16)
R.S. v. Romania (no. 33502/11)
Raduly and Others v. Romania (nos. 76937/14, 10391/15, 31958/15, 34087/15, 38874/15, 40843/15, 41206/15, 44651/15, 45163/15, 47771/15, 51984/15, 52164/15, 60739/15, 60929/15, 61966/15, 4504/16, 14043/16, 24514/16, 25216/16, 27317/16, and 30677/16)
Scârnci and Others v. Romania (nos. 42258/15, 47820/15, 159/16, 9670/16, 19339/16, 27170/16, 30035/16, 34064/16, 37323/16, 51303/16, 53424/16, and 62263/16)
Șerban and Others v. Romania (nos. 1570/15, 2516/15, 13231/15, 13821/15, 14235/15, 14619/15, 23682/15, 53679/15, 12979/16, 38590/16, 59929/16, and 68839/16)
Stelian Ștefănescu and Others v. Romania (nos. 56966/09, 75623/13, 2113/14, 54153/14, 54323/14, 60172/14, 61627/14, 62295/14, 64930/14, 68755/14, 77000/14, 3498/15, 9404/15, 14110/15, 17627/15, 34904/15, 16114/16, 29599/16, and 29629/16)
Tarcea v. Romania (no. 60254/12)
Voicu and Others v. Romania (nos. 37145/16, 44295/16, and 57030/16)
Asonov and Others v. Russia (nos. 11577/12, 30759/17, 33534/17, 34526/17, 38325/17, 53500/17, and 58157/17)
Bogdanov and Pimashin v. Russia (nos. 19746/17 and 40496/17)
Buldashev and Others v. Russia (nos. 9896/11, 29945/17, 47707/17, 48432/17, 51972/17, and 58429/17)
Dadayev v. Russia (no. 56510/11)
Golubov and Kirillov v. Russia (nos. 24463/17 and 46943/17)
Kolobutina and Others v. Russia (no. 43028/09)
Lukmanov and Others v. Russia (nos. 51779/10, 59377/10, and 67687/16)
Manikhiny and Others v. Russia (nos. 10434/07, 54033/10, 71774/12, 32099/13, and 34801/17)
Nikolayev and Others v. Russia (nos. 31113/15, 32889/16, 32928/16, 53403/16, 1141/17, 37476/17, 45869/17, and 51331/17)
Ogly and Others v. Russia (nos. 49998/17, 50053/17, 53125/17, 53511/17, 68702/17, 68989/17, 69033/17, 70474/17, and 71637/17)
Radzhabov and Others v. Russia (nos. 26091/09, 32592/16, 41917/16, 46863/16, 52808/16, 33628/17, 43320/17, 46044/17, and 61744/17)
Shcherbenko and Others v. Russia (nos. 9134/17, 11451/17, 11494/17, 27409/17, 43239/17, and 61682/17)
Sokolov and Others v. Russia (nos. 61464/15, 55985/16, 17243/17, 28671/17, 33080/17, 42095/17, 42231/17, 42417/17, and 45986/17)
Utimishev and Others v. Russia (nos. 15783/10, 34056/17, 34062/17, 34161/17, 34621/17, 53786/17, 55286/17, 56482/17, and 70654/17)
Vayel and Mokhamed v. Russia (nos. 46601/16 and 46741/16)
Anifer v. Ukraine (no. 48479/13)
Bekalyuk v. Ukraine (no. 44110/15)
But and Others v. Ukraine (nos. 14750/06, 2793/07, and 68158/10)
Gapyeyev v. Ukraine (no. 32791/17)
Khalanchuk v. Ukraine (no. 71797/13)

This press release is a document produced by the Registry. It does not bind the Court. Decisions, judgments and further information about the Court can be found on www.echr.coe.int. To receive

the Court's press releases, please subscribe here: www.echr.coe.int/RSS/en or follow us on Twitter [@ECHRpress](https://twitter.com/ECHRpress).

Press contacts

echrpress@echr.coe.int | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

Patrick Lannin (tel: + 33 3 90 21 44 18)

Somi Nikol (tel: + 33 3 90 21 64 25)

The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.